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File No.: EXP202201472 (RR/00029/2024)

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RESOLUTION OF REINSTATEMENT APPEAL

Examined the reinstatement appeal filed by VACACIONES EDREAMS, S.L. (hereinafter, the appellant), with NIF B61965778, against the resolution issued by the Director of the Spanish Agency for Data Protection dated December 12, 2023, and based on the following

FACTS

FIRST: On December 12, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202201472, by virtue of which VACACIONES EDREAMS, S.L. was imposed a fine of €10,000 (ten thousand euros) for a violation of Article 15 of the GDPR, classified under Article 83.5 of the GDPR. This resolution, which was notified to the appellant on December 15, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (LOPDGDD), and supplementarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00014/2023, the following was recorded:

FIRST: As evidenced on pages 61 and 62 of the file, on May 14, 2019, the claimant made a purchase with EDREAMS through the Opodo Germany website, registering for the Prime service (EDREAMS subscription program) by paying €74.99 with the purchase of their reservation and obtaining an immediate discount of -€59.70 on their trip. In the image of the payment for the reservation and annual subscription to Prime provided by EDREAMS, it can be seen that the email is ***EMAIL.1

One year later, on May 14, 2020, EDREAMS charged for the renewal of the Prime service, as it is an annual subscription service. On June 26, 2020, the husband of the claimant contacted EDREAMS by phone inquiring about the Prime account, to which EDREAMS provided the following note in its database:

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SECOND: On November 16, 2020, the claimant sent an email to customerservice-de@contact.opodo.com, from the email address (page 17 of the file) of A.A.A. (***EMAIL.2), an employee of the claimant's husband, with a message that included a letter dated November 10, 2020, in which their representative requests access to their data in accordance with Article 15 (1) of the General Data Protection Regulation (hereinafter, GDPR). They request that the information be received in electronic format, just as it has been requested electronically.

The text of the message was as follows:

“Dear Sir or Madam, please open the attached document.

Sincerely,

A.A.A.”

The content of the letter attached to the email is as follows (unofficial translation,

original text in German):

"Dear Sir or Madam:

In the aforementioned matter, I represent the interests of B.B.B.. I refer to the attached power of attorney.

On behalf of my client, I request information in accordance with Article 15 of the GDPR regarding whether you have stored personal data related to my client. Regarding this data stored by you, my client has the right to receive information about it. Therefore, I must ask you to provide me with the following information in accordance with Article 15, paragraph 1, of the GDPR:

a) What specific data about my client is stored by you, or is being processed (for example, last name, first name, address, date of birth, profession, medical findings, customer number, or similar)?

b) Additionally, provide information on the purposes for which the data is processed, as well as

c) the categories of personal data processed concerning my client;

d) the recipients or categories of recipients who have already received my client's data or will receive it in the future;

e) the expected duration for the storage of my client's data or, if this is not possible, the criteria for determining this duration;

f) regarding the existence of my client's rights to rectification, erasure, or restriction of processing of their data, as well as their right to object to such processing in accordance with Article 21 of the GDPR and my client's right to file a complaint with the competent supervisory authority.

g) If the data was not collected from my client, I request that you provide me with all available information about the source of the data, as well as

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h) Indicate whether there is automated decision-making, including profiling, in accordance with Article 22 of the GDPR. In this case, please provide meaningful information about the logic involved and the expected effects of such processing for my client's person.

i) Additionally, please inform me if my client's personal data has been transferred to a third country or to an international organization.

j) Furthermore, please communicate what appropriate safeguards are provided in accordance with Article 46 of the GDPR in relation to the transfer.

Please provide a copy of the data related to my client stored by you for the attention of my law firm.

After this request is made electronically and a different arrangement has been made on this side, the information will be made available to me in a commonly used electronic format.

My client expressly reserves the right to assert the right to erasure.

Finally, I would like to point out that, in accordance with Article 12, paragraph 3, of the GDPR, the information must be provided without delay, but no later than within one month. If I do not receive any information from you within this period, I will contact the relevant supervisory authority without further communication. I would like to point out the legal consequences in accordance with Article 83 of the GDPR as a precautionary measure.

Best regards

THIRD: The file contains an email received on November 17, 2020, by A.A.A. at the email ***EMAIL.2, sent from customerservice-de@contact.opodo.com, with the subject "****SUBJECT.1", containing the following content (unofficial translation, original text in German):

"Dear customer,

Please contact our customer service at the following phone numbers so that we can assist you properly regarding your matter:

from Germany: +49 (0)4034979216

from Switzerland: +41 (0)31 547 90 76 (normal call rate)

from Austria: +43 7 20380070.

We look forward to hearing from you soon.

Sincerely,

Opodo Customer Service.”

FOURTH: On November 19, 2020, the claimant sent a message attaching a letter from A.A.A.'s email (***EMAIL.2) to the email customerservice-de@contact.opodo.com, in which their representative thanked for the response dated November 17, 2020, but requested a written response to the letter sent by email on November 16, 2020, and indicated that contacting by phone to receive this information is not the appropriate way to do so. The text of the email dated November 19, 2020, is as follows:

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“Dear Sir or Madam, please open the attached document.

Sincerely,

A.A.A.”

The content of the letter attached to the email is as follows (unofficial translation, original text in German):

“Dear Sir or Madam,

Thank you very much for your text module dated 17.11.2020.

In this opinion, the letter sent to you by email on 16.11.2020, in which information was requested, must be answered unambiguously and in the context of written information. Contacting you verbally is not appropriate.

We look forward to receiving your information in written form within the established deadline.

Sincerely,

B.B.B.”

FIFTH: According to EDREAMS, on May 14, 2021, the annual payment for the claimant's Prime subscription was made again, and a refund of the charge was requested on June 10, 2021, and on that same day (June 10, 2021), their Prime subscription was canceled and the annual amount paid for it was refunded.

SIXTH: The file contains a diligence performed by the inspector, signed on June 8, 2022, in which, upon consulting the website “opodo.es/politica-de-privacidad/, the following content is certified:

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SEVENTH: On June 8, 2022, in response to the information request made by this Agency, EDREAMS states that “we have been unable to locate (...) who presents the aforementioned claim before this Agency, despite following the appropriate protocol. The search consisted of the following methodology:

- a. Search in our systems by first and last name (B.B.B.): which yielded no results.
- b. Search in our systems by last name (...): which returned 8 pages of results, but none of the reservations contain the name B.B.B.
- c. Search in our systems by first and last name (C.C.C.): which found no results.

d. Search in the email inbox of customerservice-de@contact.opodo.com (to which it appears the rights exercise was sent on November 10, 2020): which yielded no results. Due to the configuration of our systems, we can only perform search patterns by date or by email address; since we do not have the latter, we have been unable to carry out that verification.

EIGHTH: On October 21, 2022, in response to the information request made by this Agency, EDREAMS provided:

1. Privacy policy in effect as of November 10, 2020. Within the privacy policy, which was last updated in June 2019, EDREAMS states was in effect at the time of submitting the rights exercise (in Spanish and German, published on web.archive.org on September 25, 2020), in which the following information can be read, among others:

- In the Spanish version, the following is indicated: "You can access some of your data and update it through your account settings or Customer Service.

...

To exercise your rights, click here or send your request by postal mail to the following address: Data Protection – Calle Bailén, 67, 08009 Barcelona, Spain, European Union. In your request, you must clearly indicate your identity, specifying your full name and the email address you used to make the purchase or create an account, and the rights you wish to exercise.

We will respond as soon as possible, within a maximum period of one month after receiving your validated request, unless we need more time to process your request, in which case we will inform you of this.

Please note that we may ask you to verify your identity and your request before taking any action regarding that request.

You may also contact the Spanish Data Protection Agency (<https://www.aepd.es/>) or other applicable supervisory bodies, if you wish.

The exercise of these rights is free unless you make unjustified or excessive use of it. In such case, we will have the right to charge you a reasonable amount based on administrative costs."

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Unofficial translation of the German version:

"You can access some of your data regarding your account settings or post-sale service and update them.

...

To exercise your rights, click here or send your request by letter to the following address: Data Protection — Calle Bailén, 67, 08009 Barcelona, Spain, European Union. In your request, you must clearly indicate your personal identity, including your first and last name and the email address with which you booked or created an account."

2. The terms of use of the Prime subscription service, which state the following:

"3 Duration, payment, and cancellation

3.1 The Opodo Prime membership lasts 12 months from the date of acceptance by Opodo. It applies to the bookings made by you during this period.

3.2 We reserve the right to offer free or discounted trial periods to certain customers. By accepting this offer, customers become Prime members and may use the Prime services accordingly during the corresponding period. At the end of this period, the customer becomes a paying Prime member unless the Prime membership is terminated prematurely. Customers will be separately informed of the conditions (such as duration and subsequent payment) of the offered trial period.

3.3 The Opodo Prime Membership will be renewed for another 12 months at a time unless it is canceled by you or by us at least 14 days before the end of the corresponding subscription period. We will notify you of the pending renewal via the email address we have on file one month before the respective subscription period expires. If there are any changes to the eligibility requirements, we will

request your consent before renewing.

3.4 Payment will always be made in advance or at the beginning of the new subscription period and will be settled with the payment method you have provided to us, unless expressly agreed otherwise with you. Additionally, you agree that the above data will be used for the renewal of your Opodo Prime subscription.

If the bank details registered in Opodo Prime have expired, we will ask you to update them or, in that case, we will use the payment details you provided when making a reservation on our website in relation to the renewal of your membership, provided you have consented to their storage.

3. According to the Prime conditions as of May 14, 2019 (in its original language, German, and translated into Spanish), which includes, among other things, the following information regarding the cancellation of the service:

You can also cancel your Opodo Prime membership at any time, except before the expiration of the corresponding membership period. However, the membership fee will not be refunded in the event of termination (unless you exercise your right of cancellation in accordance with Article 4 of the Terms of Use).

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4. Right of withdrawal

You have the right to terminate this contract within fourteen days without stating the reason. The withdrawal period is fourteen days from the day of the conclusion of the contract."

4. The "Prime" membership data of the claimant is provided, including the first and last name of the claimant, an email address, payment details (which include the first name, last name, phone number, and email address of the payer), and billing information (which includes the name "B.B.B.", address, city, email address, tax identification number, postal code, and country).

5. A copy in English of the Internal Guide on the exercise of the right of access is provided. This guide indicates how to handle the exercise of rights from the confirmation of the identity of the requester to what response should be given, including a template for responding to rights exercises.

6. Copy of the response template for rights exercises in English:

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NINTH: On October 17, 2022, EDREAMS, from the email address

customerarelegal@edreamsodigeo.com, sent the following message to the claimant's email

***EMAIL.1 (unofficial translation of the original in German):

"B.B.B.:

First of all, thank you for contacting the Data Protection Department of eDreams ODIGEO. Your trust is very important to us, and we are equally committed to protecting the privacy and security of our customers' personal data.

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On October 6, 2022, we received a request for the exercise of your data protection rights of access, recognized in Articles 13 and following of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (GDPR), as well as in Articles 11 and following of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD) from the

Spanish Agency for Data Protection (AEPD).

We would also like to emphasize that we have searched our systems and, unless there is an error on our part, we have not found the two letters attached to your submission to the AEPD that your lawyer indicated were sent to us. We have also not found any request for access to your data from you through the privacy form on our website, and thus, eDreams ODIGEO has been unable to respond to your request until today.

We would like to remind you that, to exercise your rights regarding the protection of your data, you can submit the request through the form available in the Privacy Notice on our website, which is fully accessible and designed to facilitate the exercise of our clients' rights.

That said, we attach a copy of the confirmation email for reservation no. ***RESERVA.1, in which the start of the membership for the annual Opodo Prime subscription, in the name of B.B.B., was also confirmed. This email was sent after the purchase, on May 14, 2019 (14:52h), to the provided email address: ***EMAIL.1.

Therefore, in reference to your request to exercise your right of access, eDreams ODIGEO responds to the questions raised by your lawyer that we received in the attached document from the AEPD:

a) What are the consumer data specifically stored or processed (For example: Name, Surname, Address, Date of Birth, Occupation, Customer Number, etc.)?

The personal data is mentioned in the data file which includes identification data (for example, full name, username, internal identifier...), contact data (for example, email address, physical address, phone number), computer and connection data (for example, IP address), communication data (for example, call logs, voicemail, email), transaction data (for example, payment details for our acquired services, credit card details) and reservation data (for example, your trip).

In your case, we have not found any information in our systems related to the email address ***EMAIL.2.

Regarding reservation locator no. ***RESERVA.1, associated with the email address ***EMAIL.2 (provided at the time of purchase), we have the following information:

Type of Data

Reservation Reference ***RESERVA.1

Reservation Date ***FECHA.1

IP ***IP.1

Full Name of Buyer C.C.C.

Email ***EMAIL.2

Postal Address

***DIRECCION.1

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Phone Number ***TELEFONO.1

Full Names of Passengers

C.C.C.

B.B.B.

Payment Details

C.C.C.

Flight Details

Reservation Reference ***REFERENCIA.1

Recipients

1) Airlines operating the flights: KLM Royal Dutch Airlines

2) Management and connection systems for reservations and refunds: AMADEUS / IATA BSP-Link

3) Payment entities involved during the payment process of your reservation: CCA

4) Service providers (accommodation, communication services, fraud and security services, etc.).

*** Note: Credit card data is only shared between BBVA and us.

b) The purposes of data processing.

We process your data for the following purposes: reservation (or accepted or contracted services), communications (for example, to send you necessary or commercial communications; remember that you can opt out of receiving any commercial communication via the unsubscribe option at the footer of any commercial communication), when we promote a secure and trustworthy service (for example, when we analyze fraudulent attacks on our websites or systems) and improve our services (in which case we will seek to use pseudonymous or anonymous data for such purposes) or for legal purposes (for example, to respond to claims or requests from you, such as the present one). For more information about our objectives, please refer to section 4 ("Why do we collect your personal data and on what legal basis do we rely?") of our Privacy Notice.

c) The categories of personal data.

The categories are mentioned in the data file and in the response to question a).

d) The recipients or categories of recipients of the data.

In addition to the main categories of travel partners and service providers mentioned in the data file, we centralize our technological and management services internally through the International eDreams, SLU network of our group of companies, located in Spain (European Union).

Other categories of recipients are mentioned in section 6 ("Who will be the recipients of your personal data?") of our Privacy Notice on our websites and application:

- Service providers: to provide you with our services, we need to share your data with third parties. We specify and contractually regulate the transfer or processing of data when required by law, with appropriate security measures.

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- Our group companies: We share your data within our group companies for internal purposes related to the centralization of administration.

- Competent authorities: We may disclose your data to law enforcement authorities when required by law or when strictly necessary for the prevention, detection, or prosecution of crimes or fraud, or when the law obliges us to do so, as the data controller.

- Others: These recipients may be located outside the EEA, which implies international data transfers. We address the issue of international data transfers in the response to question j).

e) The expected duration of data storage or, if this is not possible, the criteria for determining this duration.

The standard storage period is a maximum of 5 years after the conclusion of your contract (reservation) with us, taking into account the main legal provisions regarding a possible challenge to the reservation itself, the trip, our services, and administrative, accounting, and tax obligations.

f) The existence of consumer rights regarding the correction, deletion, or restriction of the processing of your data, as well as your right to object to such processing, in accordance with Article 21 of the GDPR, and the right to complain to the competent authority.

There is no record that the subject has ever exercised the right to rectification, deletion, or restriction.

Of course, you can exercise your rights at any time using our data protection form, as mentioned in our Privacy Notice.

There is no prior objection right ever exercised by the subject. Of course, you can exercise your rights at any time using our data protection form, as mentioned in our Privacy Notice.

Regarding your right to complain to the competent supervisory authority, we inform you that any interested party has the right to lodge a complaint with the relevant supervisory authority, particularly in the Member State of their residence, and the right to an effective judicial remedy in accordance with Article 47 of the Charter, if the interested party believes that their rights under this Regulation are being infringed or if the supervisory authority does not address a complaint: rejects or dismisses a complaint in whole or in part, or fails to act when necessary to protect the rights of the interested party.

The investigation following a complaint must be carried out to the extent that it is appropriate in the specific case, without prejudice to judicial review. The supervisory authority must inform the interested party of the progress and outcome of the complaint within a reasonable time frame, and if the case requires further investigation or coordination with another supervisory authority, provisional information must be provided to the interested party.

To facilitate the submission of complaints, each supervisory authority must take measures such as providing a complaint form that can also be filled out electronically, without excluding other means of communication.

g) Source of the data.

There are different sources from which the data may originate, mainly from "data you provide us" and "data we collect from you." The following categories of

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The data refers to an individual (the categories are not exclusive, the data may cross multiple categories):

- Identification and contact data: Data that you provide to us, used to identify you as a natural person and/or data that we use to contact you.
- Account and configuration data: "Data that you provide to us." Data that you generate by using your account.
- Payment data: "Data that you share with us." Data that you provide to us to make the payment.
- Travel-related data: "Data that you share with us." The data that you have provided during the booking process, everything you select in the order form, and everything you modify or acquire later as a complement to the original order.
- Communication data: "Data that you provide to us" and "Data that we collect from you." Data from all text and voice communications exchanged between you and us regarding your requests.
- Browsing and device data: "Data that we collect from you." Data that we may automatically collect from your device when you visit our Platforms.

h) Information about the logic involved, the scope, and the intended impact when an automated decision is made (including profiling).

We do not make automated decisions based on profiling beyond the legitimate interest of fraud prevention and personalizing your user experience, marketing, and advertising.

In any case, such an automated decision will not have legal effects nor will it materially affect you in a similar manner.

In the event that we make an automated decision, we will take all appropriate measures and inform you.

i) If consumer data was sent to a third country or another international organization.

j) The appropriate safeguards in accordance with Article 46 regarding the transfer of data.

As explained in our Privacy Notice, our servers are located in the European Union. However, to facilitate our global operations (i.e., through service providers), the transfer of your data to the recipients described above may involve the transfer of your data to third countries whose data protection laws may not be as comprehensive as those of the countries in the European Union.

In this regard, both the travel sector and the online services sector require the international transfer of data. For example, intermediary providers, such as global distribution systems (which manage online bookings for airlines), are located worldwide, and some have their systems in cloud computing.

When the exceptions to Article 49 of the GDPR (in particular those established in subsections (b) and (c)) do not apply, we follow Article 46 of the GDPR.

As you may know, the Court of Justice of the European Union in the Schrems II case had an impact on how companies handle international data transfers. The U.S. Privacy Shield has been invalidated, and the clauses

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Standard contractual clauses are considered valid, provided that they also include appropriate additional safeguards in certain cases.

We refer to these measures in our data processing agreements (hereinafter referred to as "DPA") together with the standard contractual clauses (hereinafter referred to as "SCC") to mitigate the risks of such international data transfers. Among other things, we require our data processors (hereinafter referred to as "importers") to comply with the following technical and organizational measures (hereinafter referred to as "TOM") applicable to an international data transfer, as well as any other appropriate TOM (in accordance with the recommendations of the European Data Protection Board), and hereby confirm:

- The use of TOM to protect personal data and to safeguard it against eavesdropping in transit and at rest (including attempts at surveillance by public authorities or unauthorized third parties) through the use of appropriate encryption at rest and in transit.
- Robust protection measures for all personal data, including European data, such as an effective and updated policy and a legal team that always carefully reviews each data request from authorities to ensure compliance with applicable legislation, including European law. This includes reviewing the necessity and proportionality of each request, challenging each request, and informing the data controller before sharing such data.
- An updated record of each data request from authorities with the relevant information.
- Prior and ongoing assessment of the potential risk of receiving data requests from public authorities, considering that the risk is low.
- Monitoring of any international data processing and the ability to audit.
- Implementing a strict privacy by design solution in the provision of services.
- Ensuring the full exercise of the rights of data subjects.
- Prior and ongoing assessment that the level of data protection in their jurisdiction (including the jurisdictions of subprocessors) is substantially equivalent to the protection guaranteed in the EU by the GDPR in light of the Charter of Fundamental Rights of the EU and/or that data protection risks are low, taking into account the circumstances (with justification from the importer, if applicable). The importer must rely on the characteristics of their tool, the circumstances of the data processing, various reports from different credible organizations analyzing the risks, the guarantees from other bodies, etc. (which are "relevant, objective, reliable, verifiable, and publicly available or otherwise accessible") to the "documented practical experience of the importer with relevant previous request instances."
- Designation of a representative in the EU in accordance with Article 27 and 4.17 of the GDPR (if your organization is not located in the EU).

If the importer believes that the international data transfer may not be fully compliant with this DPA, the SCC, or applicable legislation, the importer will immediately implement all necessary measures to ensure that such international data transfer is compliant. If this is not possible, the importer will notify the data controller so that necessary measures can be taken, such as the termination of the contract. The importer confirms by signing this DPA that:

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- It has not intentionally created backdoors or similar programming that could be used to access the system and/or personal data;
- It has not intentionally established or modified its business processes to facilitate access to personal data or systems;
- National laws or government policies do not require the importer to create or maintain backdoors or facilitate access to personal data or systems, nor for the importer to possess or disclose the data.

- The importer guarantees the application of strict security and data protection policies, based on EU certifications or codes of conduct or international standards (e.g., ISO standards) and best practices (e.g., ENISA), taking into account the state of the art, in accordance with the risk of the categories of personal data processed.

Finally, we remind you that if you wish to access one of your specific bookings, you can usually do so directly from the Opodo website by clicking on "Manage my booking" and entering the required information (email address and booking number).

We encourage you to read our online Privacy Notice to take further steps if necessary. If you have any other questions or concerns, you can also contact our privacy team using the form provided in our Privacy Notice.

We remain at your disposal for any additional information.

Sincerely,

The DPO Team

eDreams ODIGEO Group

TENTH: On November 2, 2022, the data protection authority of Hamburg sent a letter to the AEPD through the IMI system, which includes an email sent by the complainant on October 20, 2022, to EDREAMS, in response to its email dated October 17, 2022 (Unofficial translation of the original in German):

"I regret having to return to this matter. Attached is the message sent by Opodo, Spain, to the mobile phone number (...).

Based on the information provided, which in terms of content and form does not constitute any type of competent and intelligent response, the request for information on this page cannot be considered fulfilled.

The information is provided for the email address ***EMAIL.2. On one hand, this email address does not exist and did not exist in the past. Secondly, the email address that actually exists is the email address of my secretary's office. The request for information in accordance with the GDPR was made through this address. However, it is not the address for which information was requested. The relevant email address of my client is ***EMAIL.1. Furthermore, it confirms the subscription to an annual Prime subscription in the name of B.B.B.. This subscription, however, does not appear in the additional information contained therein.

In particular, no customer number is repeatedly provided, although one must exist.

Regarding the cancellation of said subscription, Opodo supposedly requires a customer number as a prerequisite for cancellation.

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On behalf and representation of my client, I am kindly asked to follow up on the request for information. It is notable that insensitive companies can continue without changing despite the validity of the GDPR.

Thank you very much in advance for your effort."

THIRD: The appellant submitted on January 12, 2024, to this Spanish Agency for Data Protection, a request for reconsideration, basing it fundamentally on...

LEGAL GROUNDS

I

Jurisdiction

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter,

LOPDGDD).

II

Response to the allegations presented

Regarding the allegations made by the appellant in the request for reconsideration, a response is provided to them in the order presented by EDREAMS:

“PREVIOUS.- REITERATION OF THE ALLEGATIONS PREVIOUSLY PRESENTED”

With respect to the statements made by the appellant, reiterating basically the allegations already presented throughout the sanctioning procedure, it should be noted that all of them have already been analyzed and dismissed in the Legal Grounds of the contested Resolution.

For all the above, this allegation is dismissed.

“FIRST.- ON THE EXPIRATION OF THE SANCTIONING PROCEDURE”

In this allegation, EDREAMS states that the sanctioning procedure had expired, so the notification of the resolution of the procedure made on the 15...

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of December, this Agency should have declared its expiration, as the nine-month period established by Article 64.2 of the LOPDGDD had elapsed, without EDREAMS being informed that the expiration period of the procedure was going to be, or had been, suspended.

In response to this allegation, it should be noted that in Legal Basis VI, “Single Window Procedure in the GDPR,” of the draft decision prior to the initiation agreement of the sanctioning procedure, the following was established:

“Furthermore, paragraph 4 of the aforementioned Article 64 of the LOPDGDD establishes that the processing deadlines set forth in this article shall be automatically suspended when information, consultation, request for assistance, or mandatory opinion from an organ or body of the European Union or from one or more supervisory authorities of the Member States must be obtained in accordance with the provisions of the GDPR, for the time that elapses between the request and the notification of the opinion to the Spanish Data Protection Agency.”

This communication of the suspension of the processing deadline of the procedure was reiterated in Fact Seven of the initiation agreement:

“SEVENTH: On February 28, 2023, the Director of the AEPD adopted a draft decision to initiate a sanctioning procedure. Following the process established in Article 60 of the GDPR, on 6/03/2023, this draft decision was transmitted through the IMI system, and the interested authorities were informed that they had four weeks from that moment to submit relevant and justified objections. The processing deadline of this sanctioning procedure was automatically suspended during these four weeks, in accordance with the provisions of Article 64.4 of the LOPDGDD.

Within the deadline for this purpose, the interested supervisory authorities did not submit relevant and justified objections in this regard, so it is considered that all authorities agree with this draft decision and are bound by it, in accordance with the provisions of paragraph 6 of Article 60 of the GDPR.”

It cannot be asserted, as EDREAMS does, that “There has been no reference in any of the writings addressed to this party indicating that the AEPD was going to suspend the expiration period of the procedure.”

Furthermore, the allegations regarding the calculation of the suspension period made by EDREAMS are incorrect, since the authorities that had declared themselves interested in accordance with the provisions of Article 60 of the GDPR are, in addition to the data protection authority of Hamburg (Germany), the authorities of Baden-Württemberg and Berlin (Germany) and that of France. Therefore, we are talking about four authorities, of which as of April 4, 2023, only three of them had accessed the content of the draft decision on March 6, 7, and 8, 2023, which is evidenced in the report with the following statement: “Action: Access personal data” (page 189 of the file). After these consultations, it was necessary to wait for the conclusion of the four-week period, in case any of these authorities

raised any relevant and justified objections regarding the draft.

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of decision. Finally, no action was taken by the interested authorities, so the draft decision was deemed valid.

Consequently, the nine-month period for issuing and notifying the resolution in the procedure did not end on December 5, 2023, as stated by EDREAMS, but rather, due to the suspension of the procedure in accordance with the provisions of Article 64.4 of the LOPDGDD, the expiration date occurred four weeks later.

On the other hand, the date for understanding the obligation to notify within the maximum duration of the procedures, with the notification made available on the electronic headquarters (Articles 40.4 and 43.4 of the LPACAP), was December 12, 2023, not with the notification of the resolution on December 15, 2023, as claimed by EDREAMS.

Having signed the draft decision on February 28, 2023, and having duly communicated to EDREAMS the suspension of the period for processing the procedure for four weeks, with the resolution made available on the electronic headquarters on December 12, 2023, it is concluded that the procedure had not expired.

For all the above reasons, this allegation is dismissed.

“SECOND.- ON THE DISCOUNTING OF THE CONTEXT OF THE PANDEMIC”

In this allegation, EDREAMS states that this Agency has not correctly assessed the circumstances existing at the time the claimant exercised the right of access, as EDREAMS was suffering from notable facts qualifying as exceptional circumstances.

These arguments have already been addressed in the contested resolution. In November 2020, when the claimant sent the request to EDREAMS, the negative effects of the pandemic on economic activity were considerably lower than those produced between March and April 2020. EDREAMS mentions a website where the news of an ERTE affecting 90% of its workforce is reported, but this news is dated March 2020. While the peak of workers in ERTE occurred in April 2020, with more than 3.5 million workers, in November 2020 it was reduced to less than 750,000 (Source: <https://www.lamoncloa.gob.es/serviciosdeprensa/notasprensa/inclusion/Paginas/2020/021220-ertes.aspx>), so we cannot consider that the data from March is extrapolatable to November 2020.

Furthermore, the first email from the claimant, sent on November 16, 2020 (Proven Fact Second), was responded to by EDREAMS the next day, on November 17, 2020 (Proven Fact Third). The reduction of workers due to the ERTE might have justified a delay in the response, but this was not the case, as there was no delay in responding to the first email sent by the claimant, so the lack of available personnel to carry out the corresponding tasks cannot be the reason why the request was not duly attended to.

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Consequently, the collapse of EDREAMS services cannot be attributed to the lack of attention to the request submitted by the claimant.

For all the above reasons, this allegation is dismissed.

“THIRD.- ON THE INADEQUATE IDENTIFICATION OF THE CLIENT'S RIGHT OF ACCESS”

According to EDREAMS, just as flexibility is required from the data controller in addressing requests for the exercise of rights regardless of the chosen channel, it is disproportionate to impose a sanction considering the following conditions: the context of the global pandemic, that the client did not "establish" that the contact made via the generic Customer Service email was regarding data protection, that in response to EDREAMS' reply to the first email, the claimant insists on the same

terms and through the same channel, without using the means and channels made available by EDREAMS for the exercise of rights, and lastly, the complaint contains insufficient information to identify the claimant.

In response to this allegation, it should be noted that Proven Fact Two contains the content of the letter attached to the email sent by the claimant on November 16, 2020. This document clearly refers to Article 15 of the GDPR (unofficial translation, original in German):

“[...] On behalf and in the name of my client, I request information in accordance with Article 15 of the GDPR regarding whether you have stored personal data related to my client. Regarding this data stored by you, my client has the right to receive information about it. Therefore, I must ask you to provide me with the following information in accordance with Article 15, paragraph 1, of the GDPR: [...]”

Therefore, it is not true that the request for the exercise of the right of access was not properly identified.

Regarding the existence of means and channels made available by EDREAMS for the exercise of rights, this should not prevent a request for the exercise of rights concerning personal data from being addressed when presented through other means, as is the case here, where the claimant directed their request to the email (customerservice-de@contact.opodo.com). As EDREAMS itself states in its allegations, Article 12.2 of the LOPDGDD provides that: “The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible to the affected party. The exercise of the right may not be denied solely on the grounds that the affected party opted for another means.”

That requests for the exercise of the right of access to personal data are not limited to requests made through a specific channel is a criterion shared with the European Data Protection Board (hereinafter, EDPB), which, in compliance with the objective of ensuring the consistent application of the General Data Protection Regulation (as attributed to it by Article 70 of the GDPR), adopted guidelines on March 28, 2023 for...

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provide a clear and transparent basis for the exercise of the right of access
(Guidelines 01/2022 on data subject rights - Right of access)

“In the section 3.1.2 (paragraphs 52 to 57) of the aforementioned Guidelines

https://edpb.europa.eu/system/files/2023-04/edpb_guidelines_202201_data_subject_rights_access_v2_en.pdf), the following is stated regarding the requirements for the request to exercise the right of access (unofficial translation):

“52. As previously noted, the GDPR does not impose any requirements on data subjects regarding the form of the request for access to personal data. Therefore, in principle, there are no requirements under the GDPR that data subjects must observe when choosing a communication channel through which to contact the controller.

53. The EDPB encourages controllers to provide the most appropriate and user-friendly communication channels, in accordance with Article 12, paragraph 2, and Article 25, to enable the data subject to make an effective request. However, if the data subject makes a request through a communication channel provided by the controller that is different from the one indicated as preferred, the request will generally be considered effective, and the controller must process such a request. Consequently, controllers must make all reasonable efforts to ensure that the exercise of the data subject's rights is facilitated (for example, in the event that the data subject sends the request to an employee who is on leave, an automatic message informing the data subject of an alternative communication channel for their request could be a reasonable effort).

54. It should be noted that the controller is not obliged to act in response to a request sent to a random or incorrect email address (or postal address) not directly provided by the controller, or to any communication channel that is clearly not intended to receive requests related to the rights of the data

subject, if the controller has provided an appropriate communication channel that can be used by the data subject.

55. The controller is also not obliged to respond to a request sent to the email address of its employees who cannot participate in processing requests related to the rights of the data subjects (e.g., drivers, cleaning staff, etc.). Such requests will not be considered effective if the controller has clearly provided the data subject with the appropriate communication channel. However, if the data subject sends a request to the controller's employee who deals with the data subject's matters on a daily basis (single customer contact, such as, for example, personal account manager), such contact should not be considered random, and the controller must make all reasonable efforts to process such a request in a manner that it can be redirected to the point of contact and respond within the timeframes established by the GDPR.

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56. Nevertheless, the EDPB recommends, as a good practice, that data controllers introduce, to the extent possible, mechanisms to improve internal communication among employees regarding requests received by those who may not be competent to handle such requests, in order to facilitate the exercise of the rights of data subjects.

57. The date of receipt of the request by the data controller generally activates the one-month period for the data controller to provide information on the measures taken in response to a request, in accordance with Article 12, paragraph 3 of the GDPR. The EDPB considers it good practice for data controllers to confirm the receipt of requests in writing, for example, by sending emails (or information by mail, if applicable) to the requesting individuals, confirming that their requests have been received and that the one-month period runs from day X to day Y” (the underlining is ours).

These criteria determine a broad interpretation regarding the acceptance of requests for the exercise of the right of access directed by a data subject to the data controller. As a general rule, the request for the exercise of the right of access to personal data should be considered effective, so data controllers must make all reasonable efforts to ensure that the exercise of the rights of data subjects is facilitated. The claimant sent the request to an email address (November 16 and 19, 2022) that belongs to EDREAMS, specifically to its customer service (customerservice-de@contact.opodo.com). This service cannot be understood as excluded from the obligation to address requests for the exercise of rights made by EDREAMS customers, whether directly or by forwarding to the corresponding unit. According to paragraph 55 of Guide 01/2022, the data controller is not obliged to respond to a request sent to the email address of its employees who cannot participate in the processing of requests related to the rights of data subjects, such as drivers or cleaning staff. However, a department whose activity is public attention, such as the customer service of EDREAMS, which performs functions that involve the processing of personal data of citizens, cannot be excluded from the obligation to attend to requests from its customers in the exercise of the right of access to their personal data. Thus, EDREAMS itself, as explained in its SECOND allegation, has internal processes for the customer service team to manage requests for the exercise of rights in data protection, which were not applied to the request made by the claimant: “...For all these reasons, the agent acted manifestly against the instructions provided by EDREAMS not only through implemented procedures but also through periodic training and awareness actions carried out.”

Finally, if EDREAMS considered that the name and surname of the claimant were not sufficient data to identify them in its database for the purpose of addressing the request sent by email, it should have communicated this circumstance, and not simply referred to another communication channel, as it did initially, and subsequently, leaving the reiteration of the request unanswered.

For all the above reasons, this allegation is dismissed.

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“FOURTH.- ON THE ASSESSMENT BY THE AEPD OF THE COMMISSION OF A REPEATED INFRACTING CONDUCT BY EDREAMS”

In this argument, EDREAMS asserts that, “under the same conditions as if there were no cross-border processing,” these same facts would have led to the opening of a rights protection procedure, not a sanctioning procedure.

As already reasoned in the contested resolution, the lack of attention to the exercise of the right of access constitutes a violation of the GDPR, which grants supervisory authorities a series of corrective powers, including “...imposing a fine in accordance with Article 83...” (Article 58.2.i of the GDPR). Since this is a cross-border case as provided in Article 4.2(3) of the GDPR, this Agency, as the lead supervisory authority, must comply with the mandate imposed in Article 60.1 of the GDPR, which states: “The lead supervisory authority shall cooperate with the other concerned supervisory authorities in accordance with this Article, striving to reach a consensus.” Well, upon consulting the other concerned supervisory authorities regarding this case, the consensus reached through the draft decision, notified to EDREAMS on 01/03/2023, determines the necessity of opening the present sanctioning procedure under the terms set forth in the aforementioned draft decision.

In fact, the procedures initiated against EDREAMS cited in the appeal for reconsideration (**PROCEDURE.1, **PROCEDURE.2, and **PROCEDURE.3) are not rights protection procedures, but sanctioning procedures in which a resolution was issued sanctioning the lack of attention to the exercise of rights recognized by the GDPR, with a warning imposed in all of them.

Consequently, the violation subject to this procedure cannot be considered an isolated case, but rather a repeated infringing conduct that EDREAMS has committed, before which it cannot claim that the consequence of administrative responsibility can be sanctioned at all times with a warning.

For all the above reasons, this allegation is dismissed.

“FIFTH.- ON THE CONTENT OF THE RESPONSE PROVIDED TO THE CLIENT REGARDING THE EXERCISE OF THEIR RIGHT OF ACCESS”

In this allegation, EDREAMS considers that it has duly responded to the request for the exercise of the right of access made by the claimant.

On June 7, 2022, this Agency sent EDREAMS two documents from the claimant. In the first of them, dated November 10, 2020, the representative of the claimant makes a request for the exercise of the right of access.

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access regarding your represented party, and, in the second, dated November 19, 2020, it insists on receiving a response to the written request.

However, in a document prepared by EDREAMS dated June 8, 2022, in response to the information request made by this Agency, it states: “Due to the configuration of our systems, we can only perform search patterns by date or by email address; since we do not have the latter, we have been unable to carry out that verification... WE REQUEST

1. That (...) provide the identifying data of the email address with which the reservation was made...”

On October 21, 2022, in a document sent by EDREAMS to this Agency, it stated (page 61 of the file):

“Upon receiving the necessary information to address the present information request from this Agency (with the necessary identifying data for us (...)) on October 6, 2022 (registration number **REGISTRO.1), we immediately proceeded to verify that (...) purchased with EDREAMS through the Opodo Germany website on May 14, 2019, and through which they registered for the Prime service (EDREAMS subscription program), paying 74.99 EUR with the purchase of their reservation and obtaining an immediate discount of -59.70 EUR on their trip (see image 1 and Annex 2 - Copy of the Contract or user license that (...) had to accept to register for their service).” In the image following this text, as can be verified in the image reproduced in point 4 of the Proven Facts Eight, the email address

of the claimant "***EMAIL.2" is listed, therefore, having the email address of the claimant, EDREAMS, according to its own statements, had the necessary data to carry out the search for the claimant's data in its files.

Despite the initiation of procedure PS/00014/2022, the transfer of the request for the exercise of the right of access made by this Agency and the other circumstances that have been communicated to EDREAMS, it did not consider it appropriate to provide an adequate response to the request in question.

In the email sent by EDREAMS to the claimant dated October 17, 2022, the claimant is informed of the following (unofficial translation, original in German): "We would also like to emphasize that we have searched our systems and, unless we are mistaken, we have not found the two letters attached to your letter to the AEPD that you indicated were sent by your lawyer. We also have not found any request for access to your data from you through the privacy form on our website, and thus, eDreams ODIGEO has been unable to respond to your request until today.

We would like to remind you that, to exercise your rights regarding the protection of your data, you can submit the request through the form available in the Privacy Notice on our website, which is fully accessible and designed to facilitate the exercise of our clients' rights" (the underlining is ours). However, there were no grounds for EDREAMS not to attend to the request for the exercise of the right of access.

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Next, in response to the request for the exercise of the right of access, a search is conducted regarding the email address of the person who sent the request, not regarding the data of the claimant:

"...we have not found any information in our systems related to the email address ***EMAIL.2."

However, in the data provided to the claimant, we do not know if by mistake (this aspect has not been clarified by EDREAMS) it does appear as the address regarding which the inquiry was made ***EMAIL.2 (page 120 of the file, in the data "E-Mail Adresse)", alongside which the data associated with the reservation locator no. ***RESERVA.1 is sent as described in Proven Fact Ninth.

For all the above reasons, this allegation is dismissed.

"SIXTH.- ON THE INADMISSIBILITY OF OBJECTIVE LIABILITY"

EDREAMS specifies in this allegation that, since in the present case there has not been a security breach, a factual assumption referred to in the Supreme Court ruling no. 188/2022, it does not understand the criterion of direct reproachability to be applicable to the present case as it concerns a case of negligence, and not a security breach, which is the assumption covered in the aforementioned ruling.

In response to this allegation, it should be noted that the Supreme Court ruling no. 188/2022 is brought up in relation to the liability of EDREAMS for the negligent actions of its employees, without which, according to the doctrine established by that ruling, the data controller can excuse themselves based on their diligent actions separately from the actions of their employees, whether it is a security breach or the lack of attention to a right. Thus, that ruling establishes the requirements for holding legal entities liable for acts committed by their employees based not on objective liability as EDREAMS refers to, but on "the direct reproachability derived from the legal interest protected by the norm that is infringed and the necessity for that protection to be truly effective."

For further clarity, in the Supreme Court ruling no. 188/2022, the ruling of February 15, 2021 (rec. 1916/2020) is cited as a precedent, in which the Second Legal Ground establishes:

"As we saw in the third precedent, the aforementioned admission order of September 28, 2020 declares that the issue raised in the appeal that presents an objective cassational interest for the formation of jurisprudence consists of specifying the responsibility of a public Administration (in this case, the City Council of San Sebastián) in relation to the infringements of the Data Protection Law that may be committed by the officials and public employees thereof, and whether such responsibility can or cannot be attributed to the Administration, regardless of the identification of the official or

employee who materially committed the infringement" (the underlining is ours).

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Therefore, the objective of the drafting of the transcribed judgment is to clarify the responsibility for any type of infringement of the Data Protection Law committed by officials and employees of an entity, without distinguishing the type of infringement committed, whether it is a breach of security measures or a failure to attend to the exercise of a right, as interpreted by EDREAMS from the reading of Judgment No. 188/2022, which confirms the doctrine established by the Supreme Court ruling of February 15, 2021 (rec. 1916/2020).

EDREAMS considers that the infringement was committed due to "human error," for "not having escalated the inquiry for assessment by the competent team, as has been evidenced in the allegations presented to the initiation agreement of the sanctioning procedure," and that the GDPR does not establish an obligation of results but of means. However, regarding EDREAMS's actions in the lack of attention to the request for the exercise of the right of access, it is worth highlighting that:

First. The request was not attended to despite the representation of the claiming party reiterating their request (Proven Facts Second and Fourth), with no type of control over this type of communication by EDREAMS.

Second. EDREAMS has no record of having received any request for the exercise of the right of access, as stated in the response sent to the claiming party: (Proven Fact Ninth): "Furthermore, we would like to emphasize that we have searched our systems and, unless we made an error, we have not found the two letters attached to your submission to the AEPD that your lawyer indicated were sent to us. We also have not found any request for access to your data from your side through the privacy form on our website, and thus, eDreams ODIGEO has been unable to respond to your request until today.

Third. In the response sent to the claiming party, EDREAMS refers them to their form for responding to the request for the exercise of the right of access. In the letter sent to the claiming party, it states: "We would like to remind you that, to exercise your rights regarding the protection of your data, you can submit the request through the form available in the Privacy Notice on our website, which is fully accessible and designed to facilitate the exercise of our clients' rights."

Fourth. EDREAMS argues that it cannot find the personal data of the claiming party unless it is with their email address, and cannot identify its clients through other personal data, such as first and last names (Proven Fact Seventh). In the response to the information request sent by this Agency, it states (page 61 of the file): "Immediately, we proceeded to the diligent search (...) in our systems. This is the preliminary phase to address any claim in which the client's email address is not provided, which is our unique customer identifier, according to our terms of use... For all these reasons, and because it was exceptionally impossible to determine (...) with certainty after the appropriate search."

Consequently, taking into account all these circumstances, the lack of attention to the request made by the claiming party is not due to a "human error."

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isolated" as argued by EDREAMS, but rather there is culpability due to the lack of due diligence required of EDREAMS in the proper processing of the exercise of the right of access to personal data, for which EDREAMS has established a procedure through a form, as well as other measures such as internal procedures and periodic awareness actions. However, the circumstances listed above highlight the following issues:

1.- The neglect of the request had no repercussions, which demonstrates a lack of control over the requests received.

- 2.- They were unable to subsequently locate the request sent by the complaining party.
- 3.- The complaining party is referred back to the privacy form.
- 4.- Once they had the data of the complaining party, they were also unable to find the data, due to a search range limited to the email as the customer identifier.

For all the above reasons, this allegation is dismissed.

“SEVENTH.- ON THE DISPROPORTION OF IMPOSING A FINANCIAL SANCTION FOR THE EVENTS OCCURRED IN THIS CASE DURING THE PANDEMIC”

In this allegation, a summary is made of what has already been argued in the previous allegations: The existing circumstances (global pandemic) at the time the right of access was exercised by the complaining party have not been properly assessed; EDREAMS has adopted measures for addressing exercises of rights made outside the Privacy Form; and, lastly, these measures have been positively considered in other sanctioning procedures, in which this Agency imposed a warning instead of a financial sanction.

All these allegations have been responded to with reasoning in the previous sections: The circumstances that occurred at the time of the events referred to by EDREAMS, in response to the second allegation; those related to EDREAMS having an official channel to address requests for the exercise of rights by interested parties and that it had measures for requests submitted through other channels, in response to the third allegation; and, finally, that in other sanctioning procedures a warning was imposed and not a fine, in response to the fourth allegation.

For all the above reasons, this allegation is dismissed.

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"EIGHTH.- ON THE CONFIDENTIALITY OF IMAGES PROVIDED BY EDREAMS AND THEIR PUBLICATION IN THE AEPD RESOLUTIONS REPOSITORY"

In this allegation, EDREAMS requests the non-publication of certain images from the company's internal systems.

In response to this allegation, it must be stated that it does not invoke any grounds for nullity or annulment of the contested resolution, therefore, not affecting its validity, no analysis is necessary for the acceptance or dismissal of what is proposed. Regarding the request made, it will be taken into account at the time of the publication of the resolution, when it is carried out in accordance with the provisions of Article 50 of the LOPDGDD.

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

IV

Late Resolution

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appellant, as of the date hereof, the mandatory pronouncement of this Agency regarding the present appeal has not been issued.

In accordance with the provisions of Article 24 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the sense of administrative silence in the procedures for challenging acts and provisions is dismissive.

Nevertheless, and despite the time elapsed, the Administration is obliged to issue an express resolution and to notify it in all procedures regardless of their initiation form, as provided in Article 21.1 of the aforementioned LPACAP.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Considering the cited provisions and others of general application,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by VACACIONES EDREAMS, S.L., with NIF B61965778, against the resolution of this Spanish Agency for Data Protection issued on December 12, 2023, in file EXP202201472.

SECOND: TO NOTIFY this resolution to VACACIONES EDREAMS, S.L.

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THIRD: To inform the sanctioned party that the imposed sanction must be enforced once this resolution is notified, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making a payment into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period.

If the date of notification falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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